AUTHORIZING THE ALIEN PROPERTY CUSTODIAN
TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

CHIEF CLERK
SEP 3 1924
DEPARTMENT OF STATE

By virtue of the authority vested in me by an Act of Congress entitled "An Act to define, regulate and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of was expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of Fifty Three Thousand Three Hundred Thirty Three Dollars and Thirty Four Cents ($53,333.34), certain interests in real estate now being held and administered by him as such Alien Property Custodian, and heretofore, under requirement, conveyed, transferred, assigned and delivered to him as the property of CARL MAGNUS and FRIEDRICH MAGNUS, residing in Germany, whom, after investigation, he did determine

to be enemies within the purview of said Act as amended, which said property is described as follows:

All the right, title and interest of CARL MAGNUS and FRIEDRICH MAGNUS to and in an undivided one-half part or moiety in the following real estate, to wit:

Lot Eight (8) in Block Three (3), Original Town, now City of Cedar Rapids, Linn County, Iowa.

Lots One (1) and Two (2) in Block Thirty-seven (37), Original Town, now City of Cedar Rapids, Linn County, Iowa.

Lot Five (5) in Block Four (4), Bever's First Addition to Cedar Rapids, Linn County, Iowa.

Lot One (1) of Stibbs Subdivision of Out Lot Eleven (11) of the City of Cedar Rapids, Linn County, Iowa.

The West half of the South half of the Southeast quarter of the Northwest quarter (W½ S½ SE¼ NW¼) and the South ten (10) acres of the Northeast quarter of the Northwest quarter (S. 10 A NE¼ NW¼); also the North one-fourth of the Southeast quarter of the Northwest quarter (N¼ SE¼ NW¼); Also the South half of the North half of the Southeast quarter of the Northwest quarter (S½ N½ SE¼ NW¼), all in Section Fourteen (14), Township Eighty-Three (83) Range Seven (7) West of the Fifth Principal Meridian, Linn County, Iowa.

The West half (W½); the South half of the Northeast quarter S½ NE¼); the Northwest quarter of the Southeast quarter (NW¼ SE¼), and the Northwest quarter of the Northeast quarter (NW¼ NE¼), all in Section Thirty-three (33), Township Fourteen South (14 S), Range Nineteen (19) East of the Tallahassee Meridian, Levy County, Florida.

The Southeast quarter (SE¼) and the South half of the Southwest quarter (S½ SW¼) of Section Twenty-eight (28) Township Fourteen (14) South, Range Nineteen (19) East of the Tallahassee Meridian, Levy County, Florida.

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Lots Twenty-four (24) and Twenty-eight (28) in Block Seventeen of parts of Sections Five (5) and Six (6), Township Thirty-seven (37) North, Range Fifteen (15) East of the Third Principal Meridian, Cook County, Illinois.

Together with all the right, title and interest of the said Carl Magnus and Friedrich Magnus as remaindermen in the one-fourth part of said real estate now vested in the Trustee of Christine Magnus.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the purchase of said real estate has been received by the Alien Property Custodian, who holds the assent of the alien interests to the sale;

(b) The real estate in question being divided into one-fourth interests, it is advisable, for the purpose of administration, that the alien holdings be liquidated by sale to an American citizen who holds an undivided one-fourth interest;

(c) Investment of the proceeds of the sale will accrue to the benefit of the respective trusts;

(d) Liquidation is necessary, in order to provide for the payment of claims under the Act of March 4, 1923.

(e) An attempted sale at public auction would not be of any advantage and would involve unnecessary expense, delay and inconvenience, which should be avoided.

Thomas W. Miller

The White House,
December 9, 1924.